

		within 10 calendar days of the 4/18/25 hearing, the parties agree in writing to a method for appointing an arbitrator, then that method SHALL be followed. If the parties do not agree in writing, then consistent with Section 1281.6 of the Code of Civil Procedure, the court ORDERS Petitioners and Respondent to provide a joint list of persons for nomination by this court within <u>10 calendar days</u>. The list SHALL be presented in alphabetical order by last name with no indication of which party/ies have nominated the person(s). The court will thereafter nominate five persons from this list in accordance with Section 1281.6 of the Code of Civil Procedure. The court also sets an ADR Review Hearing for September 22, 2025, at 9:00 am in Dept. W8. Counsel are to submit a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. Petitioners shall give notice.
8	Turner vs. Wyndham Destinations, Inc.	<u>Motion to Dismiss or Alternatively, Quash Service of Summons</u> <i>No Tentative.</i>
9	Robert Allen, as Trustee of the 1989 Allen Family Revocable Trust vs. Lewis-Grenz	<u>Motion to Strike or Tax Costs</u> <u>Motion for Sanctions</u> <u>Motion for Attorneys' Fees and Costs</u> Disregarded Filings: Before completing the court's tentative rulings, the court noticed that the court file now contains several documents that were recently filed. They were filed after the last day to file reply papers. April 11 was the last day for filing a brief regarding the matters on calendar April 18. (See Code of Civ. Proc., § 1005(b).) As such, the court DISREGARDS any briefing or other documents filed after 4/11/25 for these motions.

1. Motion to Strike/Tax Costs

The court **GRANTS** the motion to strike filed by Plaintiff ROBERT ALLEN, as Trustee of the 1989 Allen Family Revocable Trust and Cross-Defendants ROBERT ALLEN, individually and Robert Allen, as Trustee of the 1989 Allen Family Revocable Trust (hereinafter "Plaintiff"). The motion to strike is directed at the Cost Memorandum filed on 9/3/24 by Defendants and Cross-Complainants KEVIN LEWIS-GRENZ and JULIE LEWIS-GRENZ (hereinafter "Defendants"). Plaintiff's alternative request to tax costs is therefore **MOOT**.

Among other things, Plaintiff argues that Defendants filed an untimely cost memorandum.

The argument is meritorious. It's undisputed that the cost memorandum was untimely filed, and there is no apparent written agreement between the parties to extend the time for serving and filing the cost memorandum. (See Cal. Rules of Court, rule 3.1700 [authorizing parties to extend the time for serving and filing the cost memorandum, which agreement must be in writing].)

The time provisions relating to the filing of a cost memorandum are mandatory; and the failure to timely file and serve a cost bill may result in waiver of costs. (See *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929 ["The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory."]; *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 425-426 [same; court erred in granting costs where defendants' memorandum of costs was untimely].)

In response to the motion, defense counsel states that the failure to file a timely cost memorandum was due to a miscommunication because of an unexpected family emergency for counsel. Not much information is provided as to the miscommunication or the emergency. Based on the information presented, the court does not exercise any discretion to permit the untimely cost memorandum here. The court also notes that Defendants did not file a motion